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File No.: EXP202208279

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On July 15, 2022, a complaint was filed with registration number REGAGE22e00030710153 before the Spanish Agency for Data Protection against VODAFONE ESPAÑA, S.A.U. with NIF A80907397 (hereinafter, the complained party). The reasons for the complaint are as follows: The complainant submits a complaint for receiving a commercial call on their mobile line ***PHONE.1 on July 15, 2022, at 15:15 hours, despite the line being registered in the Robinson List.

Along with the notification, the following is provided:

- Screenshot justifying the receipt of the call from the calling line ***PHONE.2.
- Recording of the call.
- Screenshot showing the registration of the line in the Robinson List and a telephone bill proving the ownership of the receiving line.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on August 1, 2022, as recorded in the acknowledgment of receipt in the file.

On September 2, 2022, a response was received in this Agency indicating that, after conducting the appropriate checks, they have verified that the complainant's telephone line is listed in the official Robinson List of ADigital and in Vodafone's internal Robinson List.

They have confirmed that the calling number indicated in the complaint is not listed in their database of numbers associated with their collaborators who make solicitation calls on behalf of Vodafone.

THIRD: On September 12, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

RESULT OF THE INVESTIGATION ACTIONS

A search was conducted for the operator of the calling telephone number indicated in the complaint in the CNMC Numbering Register, determining the corresponding entity that operates this telephone number.

A screenshot of the search result is incorporated into the file by means of a diligence.

Requested from the final operator the holder of the calling telephone number indicated in the complaint, on September 27, 2022, a letter was received in this Agency sent by LEAST COST ROUTING TELECOM, S.L. stating that the holder is: NET VOISS, S.A.C. with RUC (NIF): 20545529719 and address at AV. PETIT THOUARS 1775 of 901 EDIFICIO EL ALMIRANTE, LINCE - LIMA - PERU.

The contact details of their representative office in Spain are TECH TELECOM LEGAL SERVICES, S.L. with NIF: B42981118 and address at CALLE ANDRÉS MELLADO, Nº 31, LOCAL 18, C.P. 28015 - MADRID - SPAIN, phone: (...)

Email: LEGAL@TECH-TELECOMLEGALSERVICES.COM.

This is a Reseller, and a contract between the parties is attached to this document.

The line has been active since July 8, 2022, and to date remains active. It has not been canceled or had its ownership changed.

Upon reviewing our registration system, we confirm the making of the call.

A contract dated August 30, 2021, with Net Voiss is provided. Since September 20, 2021, it has been a reseller in the CNMC.

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Information requested from TECH TELECOM LEGAL SERVICES S.L., dated October 10, 2022, was received by this Agency, stating that the holder is:

CONTACT CENTER DI-AL E.I.R.L. with RUC (NIF) 20608827898, with registered office at JR.

FRANCISCO DE ZELA NRO. 1872 INT. 201 LIMA - LIMA – LINCE.

The line is used through SIP trunking connection (Session Initiation Protocol connection that consists of using voice over IP) via a VoIP service (Voice over IP). VoIP technology is the virtual equivalent of a traditional line for businesses, allowing calls to be made over the internet. Through this technology, the telephone service of line ***TELEPHONE.2 is provided. There is no physical installation at a residence; there is a connection to voice services via the Subscriber or User's internet so that the voice signal is sent digitally over their IP network. The line has been active since July 15, 2022, the date it was contracted with NET VOISS and has not been ported.

Additional information: NET VOISS contracts with Operators for the commercial exploitation of telephone lines through its resale to "Subscribers/Users of the telephone line" (NET VOISS clients, in this case, CONTACT CENTER DI-AL E.I.R.L.). The use of the contracted telephone lines is enjoyed solely by the "Subscribers/Users of the telephone lines," and therefore, it is these clients or subscribers who make the calls. NET VOISS S.A.C cannot engage in self-consumption of the lines it contracts with the Operator for resale.

Attached documents include:

1. Contract for the provision of IP telephony services signed between NET VOISS S.A.C. and CONTACT CENTER DI-AL E.I.R.L. dated 15/7/22.

2. Registration of NET VOISS S.A.C. with the CNMC for the resale of telephony dated 30/8/21, Resolution Date 20/9/21.

Information was requested via postal mail from CONTACT CENTER DI-AL E.I.R.L. dated October 25, 2022, with acknowledgment of receipt dated November 31, and via electronic means on the same day with acknowledgment of delivery, without having received a response as of the date of this report.

LEGAL GROUNDS

I

Competence

According to the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

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Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Final Provision Sixth, section 2, of the LGTel

"The right of end users not to receive unwanted calls for commercial communication purposes as provided in Article 66.1.b) shall come into force within one year from the publication of this law in the "Official State Gazette." Until that time, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to oppose receiving unwanted calls for commercial communication purposes made through systems other than those established in Article 66.1.a) and to be informed of this right."

III

Conclusion

Through the investigations carried out by this Agency, it has been determined that the holder of the call is CONTACT CENTER DI-AL E.I.R.L., a company located in Peru, which has not responded to the information request sent by this Agency.

It should be noted that the LGT does not confer the Spanish Agency for Data Protection with competencies over a company located in Peru.

Thus, in accordance with the aforementioned, the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present actions.

SECOND: TO NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U. and to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions in the

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Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, allow interested parties to optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file an administrative contentious appeal before the Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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